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Rhetorical Analysis: Comparing Opposing Texts

Crime and punishment has been an issue for as long as humans have bartered and communicated. The death penalty is one of the only subjects that people will consider in their lifetimes that has the ultimate consequence, life or death. It's a subject that most have an opinion on, even though it's something that less than 0.01% of people will encounter in their lifetime. There have been hundreds of articles written, news clips shared, and opinions shouted over this issue, but some are more effective than others. The death penalty is evaluated from both sides in the opposing articles, "The Case for the Death Penalty" and "Why the Death Penalty Should be Abolished." The Federalist Society argues in favor of capital punishment through a comprehensive discussion panel, while Amnesty International has created a segmented brief overviewing their argument against the death penalty. While the Federalist Society's paper is expansive, with many different speakers offering opinions, the strength of their bias shows through undeveloped arguments while Amnesty's article provides a stronger, concise, emotionally moderated perspective instead.

In the Federalist Society's paper, they lay out a clear groundwork to evaluate *all* of the merits of the death penalty, as well as attempting to anticipate and address potential counter arguments. The actual format of the article is different, in that "The Case for the Death Penalty: is structured as a back and forth debate. These industry experts make general appeals to their respective institutions. They include a diverse panel who are all introduced at the end of the

introductory paragraph, explaining that they will be discussing the implications of the death penalty, and a significant amount of the article is used directly addressing the opposition's experts. They use charged language throughout the article, and tactically address the emotional language that they anticipate their opposition using. By nature, the more 'extreme' language enflames readers, creating a naturally more opinionated and extreme dialogue and reader. This 'us vs. them' mentality allows for shallower arguments that create polarization and division instead of encouraging critical thought.

The Federalist Society uses ethos through authority and traditions. The authors lean on the idea that the Framers, "Explicitly contemplated death as a punishment," and that in the early Republic it was used often with less consideration (Federalist Society). They also point out that most Americans are in favor of the death penalty, describing a, "... broad and longstanding consensus in it's favor." (Federalist Society) While this does make for an impactful appeal to the credibility of the paper, it's 'credibility' lies on the backs of public opinion instead of a true appeal to a source of authority. The speakers, prosecutors, litigators, and legal scholars are all authorities that work as part of the system defending it. Readers who already agree with these bodies may find their voices reassuring but if an individual is skeptical of the existing powers that be, citing people whose careers rely on the death penalty likely will have the opposite effect.

Their logical appeals lean on statistics and a few selective examples. In one instance, the Federalist Society argues that, "There is no case accepted by any neutral and authoritative source for at least 40 years that we have executed an innocent person." (Federalist Society) This is treated as confirmation that there has *never* been a wrongful execution. They also make arguments using correlations, "During a fifteen year stretch with almost no executions the murder rate doubled." (Federalist Society) This cause-and-effect is nowhere near as clean as they

make it seem, and legal authorities are aware of the holes that come along with making arguments based on unproven correlations instead of searching for the true causative factors.

Pathos is the weakest side of the argument for the Federalist Society. The opening description of Jessica Lunsford's murder is explained in graphic detail. "... buried Lunsford alive in two black trash bags with her hands bound and her favorite purple stuffed dolphin tucked in her arms," with the judge calling it a, "Slow, suffering, and conscious death." (Federalist Society) While this does evoke extreme emotion in the reader through fear, disgust, and even righteous anger, it alienates just as quickly. Anyone who may have approached this argument looking to have a serious and unbiased debate is turned away in a few sentences.

Amnesty International, on the other hand, creates a totally different atmosphere. Their piece, "The Death Penalty," is a short and segmented pamphlet with bold headings and side bars that guide the reader through their argument in a few clear steps. Right away, Amnesty sets out its core claim, "The death penalty is the ultimate cruel, inhuman, and degrading punishment. It violates the right to life." (Amnesty International) They tie their stance to the Universal Declaration of Human Rights and other international treaties. Instead of saying, "Trust us because we are legally trained prosecutors," Amnesty instead gives us a more 'common' voice that is much more approachable for the average reader.

Amnesty's use of logos is more global and less hypothetical. Rather than focusing on one country's murder rate over a narrow time period, they pull back to look at the international stage. "Over half the countries in the world have now abolished the death penalty in law or in practice." They claim, "Over 40 countries have abolished the death penalty for all crimes since 1990." (Amnesty International) They also argue that abolition does not cause chaos, pointing to Canada, where the homicide rate dropped from 3.09 per 100,000 people in 1975, just before abolition, to

1.73 in 2003, the lowest rate in three decades (Amnesty International). The logical reasoning is straightforward, the death penalty is irreversible, legal systems often make mistakes, and long prison terms protect the public without risking even one execution that cannot be undone. They make the clear argument that the death penalty, “Has never been shown to deter crime more effectively than other punishments” and that it is used “disproportionately against the poor or against racial or ethnic minorities.” (Amnesty International)

Emotion is used in Amnesty’s text as well, but handled completely differently. Instead of describing ‘victims’ deaths in graphic detail, the pamphlet spends most of it’s time on people being executed. Kelsey Patterson, a man with paranoid schizophrenia, interrupted his own trial with rambling comments about conspiracies and “implants” but was still found suitable to be executed in Texas. Emotional examples but using a different feeling. Instead of a rage that asks for revenge, the reader is pulled into discomfort and empathy... Should any entity have this power? The final section of the pamphlet shifts from sorrow into a tone of action, inviting readers to write letters, join campaigns, and “taking action” against the death penalty, a use for the emotion evoked instead of pure outrage.

Compared side-by-side, the differences in rhetoric stack up quickly. Ethos is used by the Federalist Society in leaning on insiders whose credibility depends on defending the institutions that carry out executions. Amnesty International builds it’s authority on independence, international reach, and human rights work. Their logos are used differently where the Federalist Society uses statistics and anecdotes in one direction, with no uncertainty or room for discussion. Amnesty instead keeps it’s logic basic, simple, and broad. Emotion is the largest difference and becomes the Federalist Society’s weakest point, even though it is used the most intensely by them. Their focus on horrific crimes and portraying abolitionists as anti-American intensifies

outrage but clearly alienates undecided readers. Amnesty uses powerful but quieter stories of the mentally ill, minors, and nonviolent offenders... inviting discomfort and reflection in their much more effective approach to debate and disagreement.

Works Cited

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